



Ecuador

Detailed Assessment Results

I. Legal Frameworks **3.82 / 5**

II. Mining policies **2.45 / 5**

III. Investigation and enforcement **3.89 / 5**

Total score 10.15 / 15.00



Each coloured segment represents one dimension. Grey shows remaining headroom to 15.

About this scorecard

The **Amazon Mining Policy Scoreboard**, led by Amazon Conservation Association, evaluates national gold mining governance across Amazon countries. Each country is assessed across three dimensions — **Legal Frameworks**, **Mining Policies**, and **Investigation & Enforcement** — each worth up to 5 points, for a maximum total of **15 points**. Within each dimension, five categories (each normalised 0–1) are evaluated through multiple criteria.

Ecuador received a total score of **10.15 out of 15.00**, ranking **4th out of 8 Amazon countries** assessed. The pages that follow present the full set of criteria, justifications, and sources organised by dimension and category.

■ Legal Frameworks

■ Mining policies

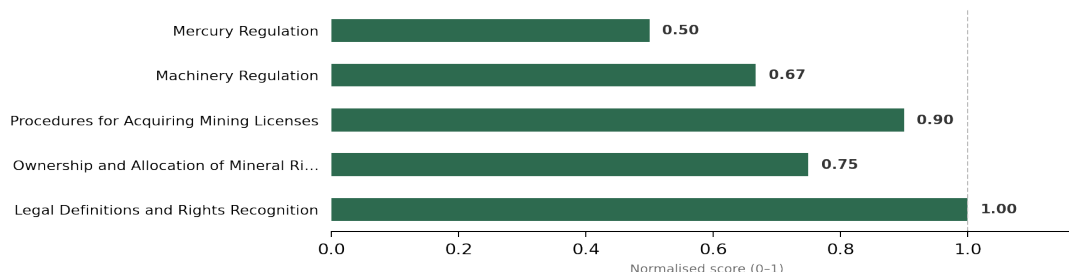
■ Investigation and enforcement

This assessment was produced by Amazon Conservation as part of the [Amazon Mining Policy Scoreboard](#), a component of [Amazon Mining Watch](#). The assessment for each country was conducted with support from, respectively: Conservación Amazonica – ACEAA (Bolivia), Instituto Centro de Vida (Brazil), Fundación para la Conservación y el Desarrollo Sostenible (Colombia), Fundación Ecociencia (Ecuador), Amazon Conservation Team (Guyana and Suriname), Conservación Amazonica – ACCA (Peru), and SOS Orinoco (Venezuela).

I. Legal Frameworks

3.82 / 5.00

Category scores



A. Legal Definitions and Rights Recognition

Score: 1.00 / 1.00

Does national legislation clearly define the legal conditions under which gold mining is permitted, and distinguish them from activities considered illegal?

1.0

Criterion 1

Justification

Mining activity is recognized by the Ecuadorian Constitution (CRE) as part of the strategic sectors, under the responsibility of the State and governed by environmental principles (Arts. 313 and 316 CRE). Minerals are state property, but the State may delegate its participation to private initiatives, mixed-ownership companies, or the so-called popular and solidarity economy (Art. 1 Mining Law, LM). Accordingly, the LM clearly defines the legal conditions that differentiate legal from illegal mining, which lie in the granting of mining rights (Art. 16 LM) derived from: concession titles, contracts, or authorizations issued by the competent authority (Art. 17 LM) depending on the regime (Arts. 133 to 137 LM) and phases (Art. 27 LM) of the mining activity. Hence, Art. Article 56 of the Mining Law defines illegal mining as “mining operations, work, and activities in any of their phases without any title or corresponding legal permit.” This is complemented by Article 57 of the Mining Law: “Illegal mining activity carried out by natural or legal persons, or groups of persons, whether national or foreign, without the titles, authorizations, permits, or licenses...”.

Therefore, legal mining activity is that carried out by an authorized holder. Conversely, anyone who carries out such activity without authorized title is engaging in illegal mining, which is considered (classified) as an administrative offense (Article 57 of the Mining Law) and even a criminal offense (Article 260 of the Comprehensive Organic Criminal Code, COIP). In criminal matters, a more technical term is used: illicit activity of mining resources since the unlawfulness refers not only to the Mining Law but also to the other rules of the legal system applicable to the matter, including the Regulation to the Mining Law (RLM), the Environmental Regulation of Mining Activities (RAAM) and applicable secondary regulations (agreements, ministerial resolutions).

Sources

Constitution of the Republic of Ecuador.

Mining Law.

Comprehensive Organic Criminal Code.

Does national legislation provide a clear legal definition of artisanal and small-scale mining (ASM), distinct from large-scale or industrial mining?

1.0

Criterion 2

Justification

The Mining Law (LM) establishes mining regimes for artisanal, small-scale, medium-scale, and large-scale mining, which differ in several factors such as production volume, deposit characteristics, and the means employed. Within this framework, the LM provides clear definitions of artisanal and small-scale mining (the term "small-scale mining" is not used in Ecuador).

Artisanal Mining: Article 134 of the LM, in conjunction with Article 18 of the Regulations for the Special Regime of Small-Scale and Artisanal Mining, defines it as mining carried out through "individual, family, or associative work by those who perform mining activities in open areas, solely and exclusively as a means of subsistence..." Article 134 of the LM adds the following characteristics: (i) use of machinery and equipment with limited load and production capacities, (ii) carrying out the activity within the permitted territorial jurisdiction, (iii) not subject to the payment of royalties or patents, but subject to the tax regime. and (iv) production capacity: a) for metallic minerals up to 10 tons per day in underground mining and 120 cubic meters per day in alluvial mining, b) for non-metallic minerals up to 50 tons per day, c) for construction materials up to 100 cubic meters per day for alluvial or unconsolidated material mining and 50 metric tons per day in open-pit mining in hard rock.

Small-scale mining.—Article 138 of the Mining Law, in conjunction with Article 4 of the Regulations for the Special Regime for Small-Scale and Artisanal Mining, defines it as that which, "due to the geological and mining characteristics and conditions of the deposits of metallic and non-metallic mineral substances and construction materials, as well as their technical and economic parameters, makes their rational exploitation viable directly, without prejudice to prior exploration work, or to the simultaneous carrying out of exploration and exploitation." 138.1 LM indicates this production capacity: a) for metallic minerals: up to 300 tonnes per day in underground mining; up to 1000 tonnes per day in open-pit mining; and, up to 1500 cubic meters per day in alluvial mining; b) for non-metallic minerals: up to 1000 tonnes per day; and, c) for construction materials: up to 800 cubic meters for alluvial terrace mining; and, 500 metric tons per day in open-pit mining in hard rock (quarry).

Sources

Mining Law.

Regulations for the Special Regime of Small-Scale and Artisanal Mining.

<https://www.lexis.com.ec/biblioteca/ley-mineria>

Does the legal framework set distinct conditions or restrictions for mining activities in Indigenous territories, protected areas, mining exclusion zones and community lands, including provisions related to consent, well-informed prior consultation, or land tenure?

1.0

Criterion 3

Justification

The Ecuadorian legal system establishes the following constitutional and legislative conditions, restrictions, and prohibitions on mining activities:

Protected Areas: Article 407 of the Constitution (CRE) prohibits extractive activities in protected areas. The prohibition is: (i) absolute for metallic mining, in all its phases; and (ii) relative for non-metallic mining, since—as an exception based on national interest—it could be authorized by the National Assembly (legislative branch) at the request of the President of the Republic. This prohibition applies only to areas that are part of the National System of Protected Areas (SNAP), which covers approximately 20% of the national territory; and does not apply to areas that are part of other biodiversity or forest heritage conservation mechanisms.

Indigenous Territories and Community Lands: Unlike protected areas, mining activities can be carried out in these territories, subject to prior consultation. This is a right of citizen participation specifically recognized by Article 407 of the Constitution. Article 57, paragraph 7 of the Constitution of the Republic of Ecuador (CRE) establishes prior, free, and informed consultation as a collective right of Indigenous communities, peoples, and nationalities. This right is exercised before the State adopts decisions regarding plans and programs for the prospecting, exploitation, and commercialization of non-renewable resources, including mineral resources, located on their lands and which may affect them environmentally or culturally. Article 3 of the Organic Law of Rural Lands and Ancestral Territories (LOTRTA) defines ancestral land and territory as “the physical space over which a community, commune, people, or nationality of ancestral origin has historically generated an identity based on social, cultural, and spiritual construction, developing economic activities and its own forms of production in a current and uninterrupted manner.”

Both the Mining Law (Article 90), the Organic Law of Citizen Participation (Article 83), and the Organic Environmental Code (Article 184) recognize the right to citizen participation in environmental matters. The Escazú Agreement (Art. 7) also commits Ecuador to act in support of this right. However, to date, no specific law has been enacted regarding this type of consultation. This legislative gap has caused confusion over time, which has been clarified over the years by the Constitutional Court of Ecuador (CCE) by establishing standards based on “genuine intercultural dialogue” and the “duty to accommodate,” whereby the State must be flexible to the interests at stake (Judgment No. 273-19-JP/22). In 2024, the national mining authority issued Ministerial Agreement MEM-MEM-2024-0002-AM, which contains a Manual for the operationalization of prior, free, and informed consultation for the issuance of administrative measures in mining concessions. This regulatory framework foresees two scenarios arising from intercultural dialogue: (i) that there is consent from the community, people, or indigenous nationality, in which case the project is implemented; or (ii) that such consent is not obtained. In this second scenario, Article 83 of the Organic Law on Citizen Participation applies, whereby the State must decide whether or not to implement the project. If it decides to implement it, Article 18 of the Manual indicates that its decision must be justified with reasons and criteria that warrant such implementation despite majority opposition.

Territories of Peoples in Voluntary Isolation: In the case of these territories, the penultimate paragraph of Article 57 of the Constitution of the Republic of Ecuador (CRE) stipulates that “all types of extractive activity shall be prohibited.” These are intangible zones defined as protected areas of exceptional cultural importance and for the development of the Quichua, Siona, Cofán, and Huaorani indigenous communities, as established in Executive Decrees No. 551 and 552 issued in 1999.

Sources

Constitution of the Republic of Ecuador.
Regional Agreement on Access to Information, Public Participation and Access to Justice in Environmental Matters in Latin America and the Caribbean (Escazú Agreement).
Mining Law.
Organic Law on Citizen Participation.
Organic Law on Rural Lands and Ancestral Territories.
Organic Environmental Code.
Presidency of the Republic. Decrees No. 551 and 552 (1999).
Ministry of Energy and Mines. Agreement MEM-MEM-2024-0002-AM.
Constitutional Court of Ecuador. Judgment No. 273-19-JP/22.

B. Ownership and Allocation of Mineral Rights

Score: 0.75 / 1.00

Does the law allocate ownership rights over minerals, including gold?

1.0

Criterion 4

Justification

Article 408 of the Constitution (CRE) establishes that non-renewable natural resources, including mineral deposits, “are the inalienable, imprescriptible, and unseizable property of the State.” In accordance with this, Article 16 of the Mining Law reiterates that the State’s ownership of the subsoil “shall be exercised independently of the right of ownership over the surface lands covering the mines and deposits.” Similarly, Article 607 of the Civil Code states that the State “owns all mines and deposits...”.

Sources

Constitution of the Republic of Ecuador.

Mining Law of Ecuador.

Are there transparent and publicly accessible registries of mining titles, licenses, or concessions for ASM (mining cadastres)?

1.0

Criterion 5

Justification

Yes, a registry and inventory of mining concessions exists, as stipulated by the Mining Law (Article 9, section d) and its Regulations (Articles 9 to 13), and is managed by the Mining Regulation and Control Agency (ARCOM). The Mining Law mandates its publication through digital and electronic means, which is publicly and freely accessible via a geoportal available on the ARCOM website.

According to Resolution No. 001-DE-ARCOM-2018, the mining inventory was closed in February 2018, as it was deemed “necessary to have a plan for areas suitable for mining exploration and exploitation, prioritizing the rational use of natural resources, consistent with the creation of new development zones under the principle of regional balance.”

After seven years of closure, the mining registry was reopened in June of this year, 2025. The reopening is stipulated in Agreement No. MEM-MEM-2025-0018-AM and has been implemented gradually and progressively, beginning with the small-scale non-metallic mining sector.

Within this framework, emphasis has been placed on strengthening access to public information, as reflected in Resolution No. ARCOM-ARCOM-2025-0035-R, which mandates all ARCOM personnel to comply with transparency functions and procedures (active, passive, targeted, and collaborative), ensuring accountability, citizen access to information, and social oversight in the mining sector.

Sources

Mining Law.

General Regulations of the Mining Law.

Ministry of Energy and Mines. Agreement No. MEM-MEM-2025-0018-AM.

ARCOM. Resolution No. 001-DE-ARCOM-2018.

ARCOM. Resolution No. ARCOM-ARCOM-2025-0035-R.

Is there an official and up-to-date mining registry that includes information allowing authorities to prevent overlapping concessions with existing rights, such as other titles, protected areas, or indigenous lands?

0.5

Criterion 6

Justification

Article 11 of the Mining Regulations stipulates that the mining cadastre must include the registration of mining concession titles, as well as areas “off-limits or restricted to mining activity” and other territorial aspects.

Additionally, Article 22 of the Annex to Resolution No. ARCOM-005/25, issued in June of this year, which contains the Instructions for the preparation of cadastral reports and certifications, requires that the cadastral report examine specific overlaps with: intangible zones, protected areas, water protection areas, forest heritage, and protective forests.

This specificity is consistent with Ecuadorian environmental legislation and encompasses areas where mining is prohibited (protected areas and intangible zones) and others where mining is permitted, albeit with stricter regulations and controls (forest heritage and protective forests). Article 11 of the Annex to this Resolution also includes in the overlap examination territories held in the ancestral possession and ownership of communities, communes, peoples, or nationalities. The geo portal available on the ARCOM website does allow you to view the overlapping areas, although indigenous territories are not yet included.

Sources

General Regulations of the Mining Law.
ARCOM. Resolution No. ARCOM-005/25.

Is there a formalization process in place for ASM workers operating without a formal permit, license and/or concession?

0.5

Criterion 7

Justification

The National Mining Development Plan 2020-2030 promotes the formalization of mining activities, and the State has therefore implemented formalization processes focused on small-scale mining. Furthermore, since the reopening of the mining registry, attention has been given, particularly to mining applications that had been backlogged since its closure.

However, it is important to clarify that Ecuador prioritizes the regularization of this activity over its formalization, as Ecuadorian law considers mining without authorization to be illegal.

Therefore, when the Mining Law was enacted, the Regulations for the Special Regime for Small-Scale Mining were also issued (2009); and subsequently, the Instructions for Granting Mining Concessions were issued (2014). In July of this year, the State also issued Agreement No. MEM-MEM-2025-0023-AM to amend the 2014 Instructions.

Sources

Mining Law.
Regulations for the Special Regime for Small-Scale Mining.
Instructions for granting mining concessions for non-metallic minerals or construction materials, up to 300 hectares, under the special regime for small-scale mining.
National Mining Development Plan.

C. Procedures for Acquiring Mining Licenses

Score: 0.90 / 1.00

Are there clear procedures for acquiring rights on ASM for gold?

1.0

Criterion 8

Justification

Yes, there are clear procedures and they are stated in articles 134 to 141 of the Mining Law and developed by the Regulation of the Special Regime of Small Mining and Artisanal Mining; and, detailed in two Instructions from 2014

and 2017 respectively for the granting of metallic and non-metallic mining concessions in small mining.

Sources

Mining Law.

Regulations for the Special Regime for Small-Scale and Artisanal Mining.

Instructions for Granting Mining Concessions for Non-Metallic Minerals or Construction Materials of Up to 300 Hectares under the Special Regime for Small-Scale Mining.

Instructions for Granting Metallic Mining Concessions under the Special Regime for Small-Scale Mining in Bidding Processes.

Is there a legal framework that requires the buyer of gold to verify its legal origin?

1.0

Criterion 9

Justification

Pursuant to Article 50 of the Mining Law, individuals or legal entities who, without holding mining concessions, engage in the commercialization or export of metallic mineral substances or the export of non-metallic mineral substances, must obtain the corresponding license from the relevant Ministry, in accordance with the provisions of the general regulations of this law. Mining concession holders who trade metallic mineral substances or export non-metallic mineral substances from areas outside their concessions must also obtain the same license. By virtue of Article 55, any trade conducted without the required license is considered clandestine.

Sources

Mining Law, No. 45/2009

Are specific environmental licensing procedures established for ASM, including simplified or tailored requirements?

1.0

Criterion 10

Justification

Article 78 of the Mining Law (LM) establishes the general obligation to "prepare and submit environmental studies or documents to prevent, mitigate, control, and repair the environmental and social impacts arising from their activities," which will be "specific and simplified" for artisanal and small-scale mining (ASM).

This general obligation is further developed in the Environmental Regulations for Mining Activities (RAAM), which establish the following parameters:

A mining title is required prior to applying for and obtaining an environmental administrative authorization, which may be: (i) an environmental registration, or (ii) an environmental license (Articles 8 and 9).

Projects, works, or activities within the special regime for artisanal mining will require an environmental registration (Article 10).

Projects, works, or activities within the small-scale mining regime: To carry out exploration activities with or without test or reconnaissance boreholes, an environmental registration must be obtained.

To carry out exploration activities that exceed the number of test boreholes permitted in these regulations, an environmental license is required.

To carry out mining or exploration and simultaneous mining activities, as well as subsequent activities, an environmental license is required.

The RAAM (Environmental Authorization System for Mining) develops this scheme of mining environmental

authorizations in accordance with the general scheme of environmental authorizations established in the Organic Environmental Code (COAM) and its Regulations (RCOAM). The COAM establishes the Single Environmental Management System (SUMA) to determine and regulate the procedures and mechanisms for the prevention, control, monitoring, and remediation of environmental pollution. Within this framework, environmental administrative authorizations are included as instruments of environmental regularization (Art. 177 COAM). These authorizations are of two types, depending on the categorization of the environmental impact or risk of the project, work, or activity: (i) low impact, through an environmental registration, or (ii) medium and high impact, through an environmental license (Art. 426 RCOAM).

The requirements for requesting these authorizations as well as the procedures for granting them are provided for in the RCOAM and the RAAM and are framed within the Single Environmental Information System (SUIA) which is the instrument that articulates the information on projects, works and activities that generate environmental risk or impact, which is administered by the national environmental authority (art. 19 COAM).

Sources

Mining Law.

Organic Environmental Code.

Regulations to the Organic Environmental Code.

Environmental Regulations for Mining Activities.

Is there a national, regional, or state government entity that oversees compliance with the implementation of artisanal and small-scale mining (ASM) operations' commitments in accordance with mining environmental licenses?

1.0

Criterion 11

Justification

In Ecuador, the enforcement of environmental licenses by artisanal and small-scale miners (ASM) is the responsibility of several institutions that operate in a coordinated manner, depending on the level of activity and the stage of the mining process.

The main Competent Environmental Authority (CEA) is the Ministry of Environment, Water and Ecological Transition (MAATE), which oversees compliance with the environmental obligations established in the environmental license and environmental management instruments, in accordance with the provisions of the Organic Environmental Code (COA) and its regulations. MAATE may delegate control and monitoring functions to provincial or municipal Decentralized Autonomous Governments (GADs) that have assumed environmental responsibilities.

In the mining sector, the Ministry of Energy and Mines (MEM), through the Agency for Regulation and Control of Energy and Non-Renewable Natural Resources (ARCERNNR), is responsible for ensuring the legality of mining operations, including ASM activities. The ARCERNNR verifies that mining concession holders have the corresponding authorizations and permits and comply with the established technical and environmental commitments.

MAATE is responsible for environmental oversight, monitoring compliance with environmental management plans and the conditions established in the licenses, while the ARCERNNR oversees the technical and mining aspects. Both institutions can coordinate joint actions with the National Police, the Attorney General's Office, and local governments to penalize illegal activities and environmental damage.

Sources

Organic Environmental Code (2017);

Mining Law (2009);

General Regulations of the Organic Environmental Code (Executive Decree No. 752 of 2019);

Are mining concessions or licenses granted for a fixed period with mandatory reassessment before extension? *0.5 may be given in cases where the reassessment is mandatory, even when there is no fixed period for the mining concession

0.5

Criterion 12

Justification

The mining concession will have a duration of up to twenty-five years, which may be renewed for equal periods, provided that a written request from the concessionaire has been submitted to the Sectoral Ministry for this purpose, before its expiration and the favorable report of the Mining Regulation and Control Agency and the Ministry of the Environment has been obtained beforehand.

Sources

Mining Law.

D. Machinery Regulation

Score: 0.67 / 1.00

Is the use of machinery in ASM subject to regulation and licensing?

1.0

Criterion 13

Justification

Agreement No. 002 of the Ministry of Transport issued in 2017 contains the regulations for the use of heavy machinery and equipment in mining activity but not related to licensing.

Sources

Regulations for the use of heavy machinery and equipment in mining activities and the commercial transport of heavy loads of forest products.

<https://www.gob.ec/index.php/regulaciones/emitir-disposiciones-uso-maquinaria-equipo-pesado-actividad-minera-transporte-comercial-carga-pesada-productos-forestales>

Are environmental impact assessments (EIAs) required for mechanized ASM operations?

0.0

Criterion 14

Justification

Article 118 of the Environmental Regulations for Mining Activities only stipulates that artisanal miners must specify, on the form issued by the National Environmental Authority, the type of machinery they will use, which must comply with the corresponding sector regulations. If an artisanal miner needs to change their machinery, they must notify the National Environmental Authority. It is important to note that this provision does not refer to small-scale mining, for which there is also no express obligation to conduct an environmental impact assessment.

Sources

Environmental Regulations for Mining Activities.

https://strapi.lexis.com.ec/uploads/Registro_Oficial_Ano_I_Segundo_Suplemento_No_56_del_10_de_junio_de_2025_LEXIS_ECUADOR_0c480a87e0.pdf

Are there governmental controls on the import, sale, or leasing of mining machinery?

1.0

Criterion 15

Justification

Agreement No. 002 of the Ministry of Transport issued in 2017 contains the regulations for the use of heavy machinery and equipment in mining activity and does provide for government controls in charge of the national transport and public works authority.

Sources

Regulations for the use of heavy machinery and equipment in mining activities and the commercial transport of heavy loads of forest products.

<https://www.gob.ec/index.php/regulaciones/emitir-disposiciones-uso-maquinaria-equipo-pesado-actividad-minera-transporte-comercial-carga-pesada-productos-forestales>

Is there a national or subnational registry for heavy machinery used in mining?

1.0

Criterion 16

Justification

Article 3 of Agreement No. 002 of the Ministry of Transportation, issued in 2017, contains the regulations for the use of heavy machinery and equipment in mining activities. It stipulates that the National Transportation and Public Works Authority is responsible for the Registry and Cadastre of all machinery, equipment, and transportation used in mining activities.

The Ministry of Transportation and Public Works, without prejudice to its responsibilities regarding road infrastructure, shall be responsible for the Registry and Cadastre of all types of heavy machinery and equipment, their parts and accessories, used in mining activities and the commercial transport of heavy cargo of forest products.

Sources

Regulations for the use of heavy machinery and equipment in mining activities and commercial transport of heavy cargo of forest products. <https://www.gob.ec/index.php/regulaciones/emitir-disposiciones-uso-maquinaria-equipo-pesado-actividad-minera-transporte-comercial-carga-pesada-productos-forestales>

Are there transparent and publicly accessible registries or databases of licenses or permits granted for the use of machinery in ASM operations?

0.0

Criterion 17

Justification

These records are not public: neither the Regulation of the National Registry of Equipment and Machinery; nor Agreement No. 002 of the Ministry of Transport issued in 2017 contains the regulations for the use of heavy machinery and equipment in mining activity, establishing parameters of public access.

Sources

Regulations of the National Registry of Equipment and Machinery (<https://www.gob.ec/sites/default/files/regulations/2018-10/079-Reglamento%20del%20Registro%20Nacional%20de%20Equipos%20y%20Maquinaria.pdf>)

Regulations for the use of heavy machinery and equipment in mining activities and commercial transport of heavy loads of forest products (<https://www.gob.ec/index.php/regulaciones/emitir-disposiciones-uso-maquinaria-equipo-pesado-actividad-minera-transporte-comercial-carga-pesada-productos-forestales>)

Are operators required to equip heavy machinery with GPS or other tracking devices for monitoring purposes?

1.0

Criterion 18

Justification

Articles 5 and 6 of Agreement No. 002 of the Ministry of Transport issued in 2017 contain the regulations for the use of heavy machinery and equipment in mining activity. They stipulate that marketing companies must deliver to buyers or purchasers the machinery and/or equipment with the respective satellite tracking devices installed, as well as the registration duly issued by the Ministry of Transport and Public Works; and that mining actors must present the GPS installation and connectivity certificate issued by the supplier.

Sources

Regulations for the use of heavy machinery and equipment in mining activities and the commercial transport of heavy loads of forest products.

<https://www.gob.ec/index.php/regulaciones/emitir-disposiciones-uso-maquinaria-equipo-pesado-actividad-minera-transporte-comercial-carga-pesada-productos-forestales>

E. Mercury Regulation

Score: 0.50 / 1.00

Is mercury import, sale, and use regulated under national law?

1.0

Criterion 19

Justification

Ecuador regulates the import, sale and use of mercury based on the standards provided by the Minamata Convention and the Basel Convention, which are developed by Titles IV and V of the Organic Environmental Code (COAM) and by Title VI of the Regulation (RCOAM) from the perspective of the comprehensive management of hazardous materials (includes chemical substances and waste), which is based on: (i) management phases, (ii) authorizations, (iii) lists, (iv) records; and (v) administrative and criminal sanctions.

Sources

Minamata Convention.

Basel Convention.

Organic Environmental Code.

Regulations to the Organic Environmental Code

Are there specific restrictions or bans on mercury use in ASM?

1.0

Criterion 20

Justification

Since 2013, a ban on the use of mercury in mining activities has been in effect, as stipulated in Article 86.1 of the Mining Law (LM). This ban is general and contrasts with the specific regulation for Small-Scale and Artisanal Mining (ASM): Article 37 of the Regulations for the Special Regime of Small-Scale and Artisanal Mining, from 2009, mandates the avoidance of mercury use. This was the initial guideline for all mining activity and continues to be the de facto guideline currently in force for ASM.

For its part, Article 88 of the 2025 Environmental Regulations for Mining Activities (RAAM) establishes these guidelines for the management of mercury as a byproduct in the beneficiation and refining phases:

"If metallic mercury is unintentionally generated as a byproduct during mineral extraction and processing activities, it must be managed as a hazardous chemical or hazardous waste, in accordance with the corresponding regulations.

At any stage of the project's lifespan, the mining concession holder may manage the metallic mercury as a hazardous waste or chemical within the country, in compliance with the provisions of the Organic Environmental Code, its Regulations, and applicable national regulations.

If the mining concession holder needs to manage it outside the country as hazardous waste, it will be exported in accordance with the provisions of the Organic Environmental Code, its Regulations, the Minamata Convention, and the Basel Convention.

The metallic mercury byproduct may be stored until the project's lifespan and must comply with the technical conditions established in applicable national and international regulations."

Regarding small-scale metallurgical mining (ASM), in 2022 Interministerial Agreement No. MAATE-MEM-2022-001 was issued, containing guidelines for the comprehensive management of mining waste and sterile material by informal recyclers within the special regime for small-scale metallic mining, which refers to mercury (see recitals).

The relative effectiveness of this confusing regulatory framework has been acknowledged in the National Action Plan on the Use of Mercury in Small-Scale Mining (ASM):

"The use of mercury in ASM activities has been prohibited since the Mining Law and is reiterated in other subsequent legal instruments related to ASM activities. Despite the prohibition, and as explained in the Diagnostic section of this document, mercury continues to be used and, contrary to expectations, its use has intensified since the enactment of the prohibition, but illegally. This has led to a nationwide black market for mercury, which is often linked to other illegal activities, such as drug trafficking or even human trafficking."

Finally, it is worth noting that since 2014, the unauthorized management of hazardous products or waste has been considered a crime in Ecuador, under Article 254 of the Comprehensive Organic Criminal Code (COIP), with a prison sentence of up to five years.

Sources

Comprehensive Organic Criminal Code.

Mining Law.

Regulations for the Special Regime of Small-Scale and Artisanal Mining.

Environmental Regulations for Mining Activities.

Interministerial Agreement No. MAATE-MEM-2022-001

Is there a system for tracking the origin, distribution, and final use of mercury?

0.0

Criterion 21

Justification

Currently, there is no specific system in place.

The National Action Plan on Mercury Use in Small-Scale Mining (ASM) includes a strategy to strengthen the control and monitoring of mercury trade and use, based on enforcement operations to verify its use and the strengthening of customs and port controls to identify and prevent smuggling. However, the systems applicable to the integrated management of hazardous chemicals and hazardous waste are currently being used.

Sources

National action plan on the use of mercury in artisanal and small-scale mining.

Are there procedures in place for the seizure, transport, and final disposal of confiscated mercury, especially following operations against illegal gold mining?

0.0

Criterion 22

Justification

Currently, there is no specific procedure in place, so the general procedures established for exercising sanctioning powers in administrative or criminal matters apply. This is confirmed in the Short Report on the Implementation of the Minamata Convention (2023), section 3.3 of which reports on the seizure of mercury in 2021 and 2022, which has been “stored in the facilities of the Judicial Police,” as is typical with evidence in any other infraction.

It should be noted that in recent years the Mining Law and its Regulations were amended to adapt sanctioning procedures to the regulations in force in the Andean Community in order to make them more effective. However, neither Article 57 of the Mining Law nor Article 99 of the Mining Regulations, as amended, include specific provisions for the retention (precautionary measure) or seizure (sanction) of mercury. In criminal matters, there are also no specific provisions for mercury, so the general procedures for its seizure (precautionary measure) or confiscation (penalty) provided for in art. 69 of the Comprehensive Organic Criminal Code (COIP) apply.

Sources

Mining Law.

General Regulations of the Mining Law.

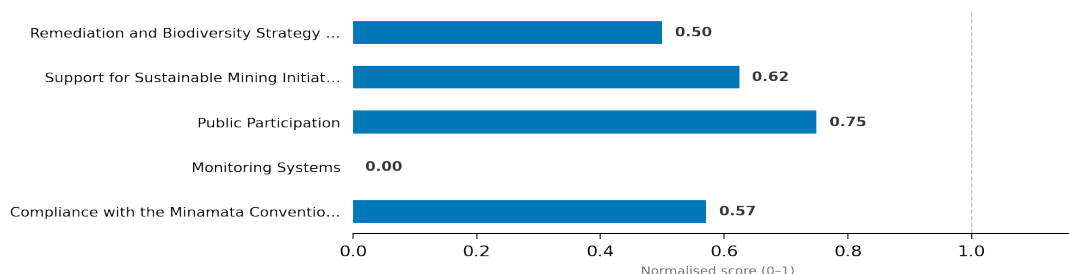
Short Report on the Implementation of the Minamata Convention (2023).

Comprehensive Organic Criminal Code.

II. Mining policies

2.45 / 5.00

Category scores



F. Compliance with the Minamata Convention on Mercury

Score: 0.57 / 1.00

Is the country a signatory or Party to the Minamata Convention on Mercury?

1.0

Criterion 23

Justification

Ecuador signed the Convention on October 13, 2013. Article 417 of the Constitution of the Republic of Ecuador empowers the President of the Republic to sign treaties (e.g., Conventions). For Ecuador to become a Party, ratification and subsequent deposit of the instrument of ratification are required, which is preceded by a legal and political review process also provided for by the Ecuadorian Constitution, as mentioned in criterion 28.

Sources

Constitution of the Republic of Ecuador.

Minamata Convention. Country Profiles. Parties and Signatories.

Has the country ratified the Minamata Convention?

1.0

Criterion 24

Justification

Ecuador ratified the Convention on July 29, 2016. Once signed, the Convention underwent a legal and political review process consisting of: (i) a constitutional review by the Constitutional Court of Ecuador (Article 438, paragraph 1 of the Constitution); and (ii) a review of political expediency by the National Assembly (legislative function) after the Court determined the need for legislative approval (Article 419 of the Constitution).

After this dual review, the treaty was ratified by the President of the Republic (Article 419 of the Constitution) through Decree No. 972 of March 24, 2016; and, finally, the instrument of ratification was deposited with the depositary of the Convention. Therefore, the Convention entered into force for Ecuador on August 16, 2017.

Sources

Constitution of the Republic of Ecuador.

Minamata Convention. Country Profiles. Parties and Signatories.

Presidency of the Republic. Decree No. 972 (2016).

Has the country submitted an initial assessment report as part of its participation in the Convention?

0.0

Criterion 25

Justification

There is no record that Ecuador has submitted an initial assessment report.

Ecuador is not listed in the Convention's registry of countries that have submitted such an assessment; nor is there any record of this document in Ecuador's Official Registry, or in the official repository of regulations applicable to this Convention, available on the website of the national environmental authority.

Sources

Minamata Convention. Parties. Initial Assessments.

Official Registry of Ecuador.

Ministry of Environment and Energy.

Has the country developed and submitted a National Action Plan (NAP) on mercury in accordance with the Convention?

1.0

Criterion 26

Justification

In May 2020, Ecuador developed a National Action Plan, which was submitted to the Convention Secretariat in October of the same year. The document is available on the Convention's website.

Sources

Minamata Convention. Parties. National Action Plans.

Does the NAP explicitly mention forests or forest ecosystems in the context of mercury reduction strategies?

0.0

Criterion 27

Justification

The Plan includes a strategy for reducing mercury releases and exposure risks and eliminating the worst practices, but it does not explicitly mention forests, not even in the lines of action aimed at reviewing and strengthening the management of areas and sites dedicated to mining activities.

Sources

Minamata Convention. Parties. National Action Plans.

Does the NAP specifically refer to the Amazon region in its analysis, objectives, or proposed actions?

0.0

Criterion 28

Justification

The PAN includes few descriptive references on the identification of gold mining activities in Amazonian provinces and to reiterate the pan-Amazonian scope of illegal mining (in which reference is made to the mapping work of RAISG, p.39); but there is no specific reference of an analytical nature in either the objectives or the proposed actions.

Sources

Does the NAP take into account intersectional approaches?

1.0

Criterion 29

Justification

The National Action Plan (PAN) includes economic, environmental, and public health aspects in its diagnostic assessment, which is also reflected in its strategies. Within this framework, it is worth highlighting the emphasis placed on gender equality and child labor.

Sources

Minamata Convention. Parties. National Action Plans.

G. Monitoring Systems

Score: 0.00 / 1.00

Are there government-led monitoring systems for environmental and social impacts of ASM?

0.0

Criterion 30

Justification

There are no government monitoring systems. However, the authorities do conduct environmental impact assessments through various environmental control and monitoring mechanisms, which are provided for in Article 201 of the Organic Environmental Code; their specific application in this area is detailed in Chapter VII of the Environmental Regulations for Mining Activities. These mechanisms include internal monitoring, inspections, compliance reports, and environmental audits, which are applied depending on the regime and phase of the mining activity. These mechanisms do not directly address the assessment of social impacts.

Sources

Organic Environmental Code.

Environmental Regulations for Mining Activities.

Is satellite or geospatial monitoring used to detect illegal or unlicensed ASM activities?

0.0

Criterion 31

Justification

There is no evidence of the regular use of satellite or geospatial monitoring specifically for illegal artisanal and small-scale mining (ASM) activities. However, there is information regarding training provided to government institutions on the use of advanced satellite technology for managing geological hazards.

Sources

Geological and Energy Research Institute. News. Ecuador strengthens its use of advanced satellite technology for geological hazard management.

<https://www.geoenergia.gob.ec/ecuador-se-fortalece-en-el-uso-de-tecnologia-satelital-avanzada-para-la-gestion-de-a-menazas-geologicas/>

Can governmental satellite monitoring systems distinguish between artisanal, semi-mechanized, and mechanized mining activities?

0.0

Criterion 32

Justification

In accordance with criterion 39, there are no government satellite monitoring systems, so mining activities cannot be distinguished.

Is mercury concentration measured by the government in potentially affected water bodies, the food chain and/or populations?

0.0

Criterion 33

Justification

The government does not measure mercury concentration in bodies of water. However, the government does review and audit internal monitoring reports submitted by mining companies, which include heavy metal monitoring. This authority is exercised pursuant to Articles 40, 42, and 46 of the Environmental Regulations for Mining Activities.

Sources

Environmental Regulations for Mining Activities

H. Public Participation

Score: 0.75 / 1.00

Are there legal channels for civil society oversight or participation in monitoring and enforcement?

1.0

Criterion 34

Justification

Citizen participation is a constitutional right in Ecuador; and, in environmental matters, Article 201 of the Organic Environmental Code, in accordance with Article 497 of its Regulations, establishes citizen or community oversight as one of the mechanisms for controlling and monitoring the environmental quality of works, projects or activities that may generate environmental impact.

Sources

Organic Environmental Code.

Environmental Regulations for Mining Activities

Is there an official, accessible, safe, and functional channel for individuals or communities to file complaints related to ASGM activities or associated environmental impacts?

1.0

Criterion 35

Justification

There are several official channels to report illegal mining activities confidentially and while maintaining the confidentiality of the complainant's data, through the telephone line 1 800 DELITO or the number 131. This channel is managed by the Ministry of the Interior.

Sources

Are there processes for public consultation with affected communities in mining-related decisions?

1.0

Criterion 36

Justification

Public consultation processes in mining decisions are framed within the constitutional right to citizen participation and are outlined in Articles 89 and 90 of the Mining Law, which provide for: (i) a consultation process with the community, and (ii) a special consultation process with indigenous communities, peoples, and nationalities. This classification is consistent with that established by the Constitution and the Organic Environmental Code, which has been characterized in case law as: (i) environmental consultation, as a diffuse environmental right; and (ii) free, prior, and informed consultation, as a collective right of indigenous peoples and nationalities. Environmental consultation is regulated by Decree 754, which amends the Regulations to the Organic Environmental Code; this is complemented by Article 24 of the Environmental Regulations for Mining Activities. Prior consultation is regulated by Agreement MEM-MEM-2024-0002-AM, which contains the Manual for the operationalization of free and informed prior consultation, contained in number 7 of article 57 of the Constitution of the Republic of Ecuador for the issuance of administrative measures in mining concessions.

Sources

Mining Law.

Decree 754.

MEM Agreement 2024-0002-AM.

Constitutional Court. Judgment 51-23-IN/23.

Are civil society complaints taken into account in the authorization or assessment processes of mining projects?

0.0

Criterion 37

Justification

Complaints are filed when an alleged administrative or criminal violation is discovered, which is independent of the authorization or evaluation of mining projects. Therefore, Ecuadorian law does not foresee any effect of a complaint on the administrative procedure for authorizing or evaluating a project.

Do national programs on ASM include specific measures to support the participation of women, Indigenous peoples, or traditional communities?

1.0

Criterion 38

Justification

In 2023, the Organic Law to Promote the Violet Economy came into effect. Its objective is to strengthen, promote, guarantee, and implement the mainstreaming of a gender and multicultural approach through the creation of incentives and public policies that encourage the civilian population to empower women in all their diversity, especially those who have been victims of violence or are in vulnerable situations, including women from different peoples and nationalities. At the beginning of 2025, a survey was conducted analyzing 14 private companies in the sector, which determined that female participation increased from 16.95% in 2021 to 19.56% in 2025, surpassing countries like Peru (6%) and Colombia (13%).

Sources

Organic Law to Promote the Violet Economy.
Mining World. Second survey by WIM Ecuador analyzes equity in mining.

<https://mundominero.com.ec/equidad-genero-mineria-ecuador-2025/>

Are there protocols for the care and protection of victims and witnesses of crimes related to or derived from illegal mining? *0.5 may be given in cases there are general protection of witnesses and victims programs, but not specific for illegal mining

0.5

Criterion 39

Justification

The Attorney General's Office of Ecuador manages the National System for the Protection and Assistance of Victims, Witnesses, and Other Participants (SPAVT). This system, established under the Organic Code of the Judiciary and the Comprehensive Organic Criminal Code (COIP), has 23 specialized units nationwide, responsible for assessing risks and implementing protection measures. When a victim or witness of a crime (for example, a witness to illegal mining who reports a criminal gang) is threatened, the SPAVT activates measures ranging from psychological support and legal counsel to semi-permanent or permanent police protection. However, Ecuador still lacks a formal protection system specifically for victims of mining.

Sources

<https://www.fiscalia.gob.ec/proteccion-y-asistencia-a-victimas-testigos/#:~:text=La%20Fiscal%C3%ADa%20General%20del%20Estado,y%20testigos%20a%20nivel%20nacional>

I. Support for Sustainable Mining Initiatives

Score: 0.62 / 1.00

Are there public programs to support formalization through incentives to and capacity-building of ASM gold miners?

1.0

Criterion 40

Justification

Title IV of the Regulations for the Special Regime of Small-Scale Artisanal Mining provides for measures to promote, provide technical assistance, and foster innovation, including a program to improve the efficiency and competitiveness of these regimes. Within this framework, the PlanetGOLD Ecuador project, for example, aims to transform artisanal and small-scale mining (ASM) by promoting sustainable practices and reducing mercury use. This project, led by the national environmental authority and supported by the UNDP and the GEF, focuses specifically on formalizing the ASM sector, including improving the integration of artisanal and small-scale mining into the formal regulatory framework and providing capacity building.

Sources

Regulations for the Special Regime of Small-Scale Artisanal Mining
Mining World. PlanetGOLD seeks cleaner and more sustainable artisanal mining in Ecuador.

<https://mundominero.com.ec/planetgold-mineria-artesanal-sostenible-ecuador/>

Are there accessible financing mechanisms promoted by the State to support sustainable practices as an alternative to unsustainable ASM gold mining?

1.0

Criterion 41

Justification

Article 30 of the Regulations for the Special Regime for Small-Scale Artisanal Mining stipulates the availability of financing plans and sources through the National Finance Corporation, the Development Bank, and the State Bank. Accordingly, BANEQUADOR offers a Mining Development credit line specifically for economic agents authorized by the Central Bank of Ecuador to trade gold from small-scale and artisanal mining operations whose annual income does not exceed \$300,000.

Sources

Regulations for the Special Regime for Small-Scale and Artisanal Mining.
BANEQUADOR. Credit. Mining.

Are safer mercury-free technologies promoted through incentives or support programs?

1.0

Criterion 42

Justification

Articles 35 and 37 of the Regulations for the Special Regime of Small-Scale Artisanal Mining provide for the development of processes to promote clean technologies to reduce emissions and waste; and, specifically, they provide for the adoption of procedures that avoid the use of mercury.

In this regard, the PlanetGOLD project promotes the transition to mercury-free technologies and reduces the use of mercury in mining activities, in accordance with the Minamata Convention. The project provides access to clean technologies, financing, and ongoing training.

Sources

Regulations for the Special Regime for Small-Scale and Artisanal Mining.

UNDP. Projects. PlanetGOLD. <https://www.undp.org/es/ecuador/proyectos/planetgold-ecuador-promover-la-formalizacion-y-el-uso-de-mejores-tecnicas-de-mineria-aluvial-y-de-roca-dura-para-reducir-el-uso-de>

Are women, traditional communities and Indigenous peoples specifically included in sustainable ASM initiatives?

0.0

Criterion 43

Justification

There are no regulations specifically aimed at including gender and intercultural approaches in sustainable artisanal and small-scale farming (ASF) initiatives. However, Ecuador does have a law on the purple economy that promotes the inclusion of these approaches from a labor perspective, and the UNDP is promoting a project to this end.

Are there governmental programs to collaborate with NGOs, academic institutions, or international agencies to promote sustainable ASM practices?

1.0

Criterion 44

Justification

PlanetGOLD Ecuador is a global initiative implemented by the United Nations Development Programme (UNDP) and supported by the Global Environment Facility (GEF), involving direct coordination with the Ministry of Environment and

Energy (MAE). The project collaborates with financial institutions such as the Central Bank of Ecuador to create sustainable solutions. It also collaborates with specialized organizations such as the Alliance for Responsible Mining (ARM) and the Artisanal Gold Council in promoting responsible practices and developing the National Action Plan on Mercury.

Sources

UNDP. Projects. PlanetGOLD. <https://www.undp.org/es/ecuador/proyectos/planetgold-ecuador-promover-la-formalizacion-y-el-uso-de-mejores-tecnicas-de-mineria-aluvial-y-de-roca-dura-para-reducir-el-uso-de>

Are there clear protection mechanisms for individuals working in areas of mining?

1.0

Criterion 45

Justification

Ecuador has established the Occupational Safety and Health Regulations for the Mining Sector (Ministerial Agreement No. 253), which provide detailed guidelines for worker protection, including specific safety measures, personal protective equipment, emergency procedures, and safety training. These regulations are based on the Constitution, the Labor Code, and Andean instruments on occupational safety.

Sources

Ministry of Labor. (2017). Regulations on Occupational Safety and Health in the Mining Sector - Ministerial Agreement No. 253. <https://www.trabajo.gob.ec/wp-content/uploads/downloads/2017/11/Reglamento-de-Seguridad-y-Salud-en-el-Trabajo-en-el-Sector-Minero.pdf>

- Labor Code of Ecuador.

<https://www.trabajo.gob.ec/wp-content/uploads/downloads/2012/11/C%C3%B3digo-de-Trabajo-PDF.pdf>

Is there recognition or promotion of international certification schemes by the government?

0.0

Criterion 46

Justification

There is no government recognition or promotion of international certification schemes associated with responsible mining or fair trade. Currently, the only requirements for international refiners of non-monetary gold certification are proof of implementation of environmental management system standards.

Sources

Central Bank. Gold trading. International gold refining ratings for non-monetary gold.

Is there a government incentive for the adoption of gold certification?

0.0

Criterion 47

Justification

No government incentives for the adoption of gold certifications that are provided for by law were identified.

Sources

Central Bank. Gold trading. Gold purchases.

Is ASM gold mining recognized in the country's National Biodiversity Strategy and Action Plan (NBSAP)?

0.0

Criterion 48

Justification

A specific search for mentions of 'ASM' or 'ASM gold mining' within the 'National Biodiversity Strategy 2015-2030' yielded no direct results. The document addresses mining and its environmental impacts in a broader sense, but does not specifically mention artisanal and small-scale gold mining. Although the document includes research on activities such as mining, solid waste management, energy generation, agricultural activities, and the use of forest and marine-coastal resources, there is no specific recognition of ASM gold mining as an activity requiring particular attention within the framework of biodiversity conservation.

Sources

National Biodiversity Strategy

<https://cajaherramientasea.ambiente.gob.ec/?wpdmprom=estrategia-nacional-de-biodiversidad-2015-2030>

Does the country have specific programs, targets, or funding mechanisms for ecosystem restoration in areas affected by ASM gold mining?

0.5

Criterion 49

Justification

The National Biodiversity Strategy mentions the 'Environmental and Social Remediation Program (PRAS),' which aims to eliminate the environmental liabilities of extractive activities, including mining. PRAS has developed a conceptual framework for a comprehensive remediation policy and is currently being institutionalized.

The program includes the development of a National Information System for Comprehensive Remediation (SINARI) to inventory sources of pollution from activities such as mining. However, no specific programs with clearly defined goals and funding were identified for ecosystem restoration in areas specifically affected by artisanal and small-scale mining (ASM).

Are there requirements or guidance for restoration, remediation, or compensation for degraded areas?

1.0

Criterion 50

Justification

Article 1 of the Environmental Regulations for Mining Activities includes among its objectives the establishment of measures for the rehabilitation and restoration of natural areas degraded by these activities. Articles 108 to 110 establish guidelines, which are framed within the closure and abandonment phase.

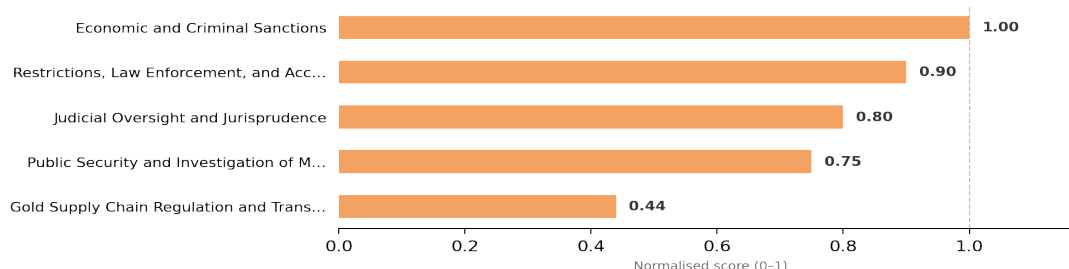
Sources

Environmental Regulations for Mining Activities.

III. Investigation and enforcement

3.89 / 5.00

Category scores



K. Gold Supply Chain Regulation and Transparency

Score: 0.44 / 1.00

Does the country require formal registration of all actors in the ASM gold supply chain (miners, traders, and exporters)?

1.0

Criterion 51

Justification

Ecuador requires the formal registration of all actors in the artisanal and small-scale gold supply chain. In accordance with Article 9, paragraph d, of the Mining Law, the Mining Regulation and Control Agency maintains a mining registry. Article 140 of the same law requires registration for holders of mining rights under this regime.

Sources

Mining Law

Are there specific permits or procedures required for exporting ASM gold?

1.0

Criterion 52

Justification

Gold traded with the Central Bank of Ecuador (BCE) must be of legal origin. Therefore, all interested individuals or legal entities must be authorized as Economic Agents for Gold Trading, which requires meeting the following requirements: Having registered mining rights with the relevant Ministry, currently the Ministry of Energy and Non-Renewable Natural Resources. Being up-to-date with tax obligations as determined by the Internal Revenue Service (SRI); and not being registered as a defaulting supplier to the State according to information provided by the National Public Procurement Service. Not being involved in money laundering or the financing of terrorism, nor in crimes sanctioned for the production or illicit trafficking of narcotic and psychotropic substances. Registering and obtaining authorization as an Economic Agent with the Central Bank of Ecuador (BCE).

Sources

Central Bank of Ecuador. Gold Trading.

<https://www.bce.fin.ec/comercializacion-del-oro/autorizacion-de-agentes-economicos-para-comercializacion-del-oro/>

Are files on ASM areas, including titles, licenses, embargoes, and monitored zones, available in open, updated formats compatible with geospatial analysis systems?

0.5

Criterion 53

Justification

The Mining Regulation and Control Agency maintains a geoportal of the mining registry, which includes maps and information on special mining areas, protected areas, and restricted zones, but it is not specific to MAPE areas, nor does it include information on embargoes. This geoportal is available in open format.

Sources

ARCOM. National Mining Cadastre. <https://www.controlminero.gob.ec/catastro-minero/>

•Discovery Alert. (2025, June 21). Ecuador Reopens Mining Registration After 7-Year Hiatus.

<https://discoveryalert.com.au/news/ecuador-mining-registration-system-2025-reopens-hiatus/>

•Tobar ZVS Spingarn. (2016). REGULATION TO THE MINING LAW OF ECUADOR (DECREE No. 119).

<https://www.tzvs.ec/wp-content/uploads/2016/11/ReglamLeyMin-Eng-102716.pdf>

Is there a strategy in place to ensure the traceability of gold from extraction to final sale?

0.0

Criterion 54

Justification

There is no specific regulation that requires concrete traceability mechanisms.

Sources

Global Initiative Against Transnational Organized Crime. (2025, June 25). Illegal mining and gold supply chains in Ecuador. <https://globalinitiative.net/analysis/illegal-mining-and-gold-supply-chai>

Is disclosure of transactions between miners, traders, and exporters mandatory?

0.0

Criterion 55

Justification

No evidence was found of specific mandatory requirements for the disclosure of transactions between miners, traders, and exporters. Although due diligence requirements exist for financial institutions and the Central Bank, there is no mandatory system for disclosing transactions across the entire supply chain.

Sources

Global Initiative Against Transnational Organized Crime. (2025, June 25). Illegal mining and gold supply chains in Ecuador.

<https://globalinitiative.net/analysis/illegal-mining-and-gold-supply-chains-in-ecuador/>

Central Bank of Ecuador. Authorization of economic agents for gold trading.

<https://www.bce.fin.ec/comercializacion-del-oro/autorizacion-de-agentes-economicos-para-comercializacion-del-oro/>

Does the legal framework require financial institutions to verify the legal provenance of gold-related transactions?

1.0

Criterion 56

Justification

Financial institutions are involved in the due diligence process. The Central Bank of Ecuador conducts an initial due diligence review based on its internal compliance procedures for linking mining activities. Requirements for economic

agents include a compliance certificate from the Financial and Economic Analysis Unit (UAFE).

Sources

- Central Bank of Ecuador. (n.d.). Authorization of economic agents for gold trading. <https://www.bce.fin.ec/comercializacion-del-oro/autorizacion-de-agentes-economicos-para-comercializacion-del-oro/>
- UAFE. Financial and Economic Analysis Unit. <https://www.uafe.gob.ec/>

Is there a centralized digital/electronic registry for gold supply chain transactions accessible to regulatory authorities and civil society?

0.0

Criterion 57

Justification

No publicly accessible records were identified, nor was there any record accessible to regulatory authorities.

Sources

- Discovery Alert. (2025, June 21). Ecuador Reopens Mining Registration After 7-Year Hiatus. <https://discoveryalert.com.au/news/ecuador-mining-registration-system-2025-reopens-hiatus/>
- ARCOM. National Mining Cadastre. <https://www.controlminero.gob.ec/catastro-minero/>

Are there protocols for information sharing and joint enforcement with neighboring countries?

0.0

Criterion 58

Justification

There is no specific rule in the Mining Law, nor in its regulations, that is applicable to MAPE mining activity.

Sources

- Mongabay. (2025, August 6). Cross-border operation cracks down on environmental crimes in the Amazon. <https://news.mongabay.com/2025/08/cross-border-operation-cracks-down-on-environmental-crimes-in-the-amazon/>
- ACTO. Bogotá Declaration strengthens fund to save tropical forests. <https://otca.org/declaracion-de-bogota-refuerza-fondo-para-salvar-los-bosques-tropicales/>

L. Public Security and Investigation of Mining-Related Crimes

Score: 0.75 / 1.00

Do public security bodies have specific strategies in place for safeguarding Indigenous and traditional communities against crimes related to mining in their territories?

0.0

Criterion 59

Justification

Currently, there is no specific strategy in place. However, in July 2025, the Organic Law for the Strengthening of Protected Areas came into effect. Article 6 of this law stipulates that the National Police, the Armed Forces, and the National Environmental Authority, within their respective areas of competence, will develop a coordinated Comprehensive Security Plan for the National System of Protected Areas, as well as specific intervention protocols. This plan must be updated periodically, at least annually. The Comprehensive Security Plan and the protocols must guarantee strict compliance with Article 57, paragraph 20, of the Constitution of the Republic of Ecuador, which limits military activities in these territories. This is without prejudice to the intervention of security forces in the event of the presence of organized crime or organized armed groups in protected areas, in order to protect the sovereignty and population of these areas.

Sources

Organic Law for the strengthening of Protected Areas.

Are there specialized police and prosecutor units for environmental crimes or illegal mining with effective coverage in critical areas?

1.0

Criterion 60

Justification

Ecuador has the UN-IDCAN (National Unit for the Investigation of Crimes Against the Environment and Nature), a specialized unit within the Judicial Police that focuses on investigating crimes against the environment and nature, with a specific focus on illegal mining and wildlife trafficking. There is also the Specialized Unit for the Investigation of Crimes Against the Environment and Nature within the Attorney General's Office.

Sources

- *National Police of Ecuador. National Unit for the Investigation of Crimes Against the Environment and Nature (UN-IDCAN).*

<https://www.policia.gob.ec/unidad-nacional-de-investigacion-de-delitos-contra-el-ambiente-y-naturaleza-un-idcan/>

- *Attorney General's Office. Specialized Unit for the Investigation of Crimes Against the Environment and Nature.*

<https://www.fiscalia.gob.ec/unidad-especializada-para-la-investigacion-de-delitos-contra-el-ambiente-y-la-naturaleza/>

Is there a clear procedure for investigating crimes related to mining?

1.0

Criterion 61

Justification

The Comprehensive Organic Criminal Code establishes clear procedures for investigating crimes involving the illicit exploitation of mineral resources. These procedures are the same as those applicable to crimes prosecuted by the state, and their phases and stages are regulated in Book II of the same code.

Sources

<https://www.lexis.com.ec/biblioteca/coip>

Does the country have bilateral or multilateral protocols or agreements in place to coordinate joint police operations for the enforcement of environmental and mining laws?

1.0

Criterion 62

Justification

Ecuador participates in various regional cooperation frameworks for the control of illegal mining and environmental protection. It is a party to the Amazon Cooperation Treaty and the Andean Community, complying with Decision 774 (2012) on combating illegal mining. At the bilateral level, it maintains the Binational Commission for the Integrated Management of Border Basins with Peru, created under the 1998 peace treaty, which coordinates actions in the Chinchipe and Santiago-Cenepa river basins to combat illegal mining. With Colombia, Ecuador has been developing joint military and police surveillance plans along the Putumayo border since 2011, where binational illicit mining operations are taking place.

Sources

Amazon Cooperation Treaty (1978); CAN (Decision 774, 2012); OTCA (Bogotá Declaration, 2025); INTERPOL (Green Shield, 2025).

Have courts issued binding decisions related to illegal gold mining or its socio-environmental impacts in the last five years?

1.0

Criterion 63

Justification

In the last five years, the Criminal Chamber of the National Court of Justice has issued five convictions for the crime of illegal mining activity. This crime is defined in Article 260 of the Comprehensive Organic Criminal Code. All cases involved the unauthorized transport of mineral resources and resulted from roadside checkpoints. These are cases that could be considered minor. To date, no high-profile case has been decided by the National Court of Justice, the highest criminal court. According to press reports, there are many more cases that have been adjudicated in lower courts and many more that are currently being prosecuted. However, the cases adjudicated by the National Court have been used as an indicator, as it is the highest court in this matter.

Sources

National Court of Justice. Judgment Search Engine. Keyword: miners.

<https://busquedasentencias.cortenacional.gob.ec/>

Comprehensive Organic Criminal Code.

Have judicial decisions or jurisprudence recognizing natural ecosystems as subjects of rights generated legal restrictions, obligations, or the imposition of sanctions in legal cases related to mining activities?

1.0

Criterion 64

Justification

In Ecuador, nature is considered to have three rights: to exist, to persist (through life cycles), and to be restored. Article 73 of the Constitution mandates the State to adopt restrictive and precautionary measures to prevent the extinction of species or the destruction of ecosystems; these are measures that apply in complex situations. In accordance with this constitutional provision, the Constitutional Court decided the case known as Los Cedros Protected Forest (2021). In this case, the State granted authorization for exploratory mining activity beneath this forest, which harbors fragile ecosystems and hundreds of endangered species of flora and fauna. The State, through the national environmental authority, granted environmental authorization because the project did not intersect with protected areas (where mining is prohibited by Article 407 of the Constitution) and because the project complied with current environmental regulations. However, the environmental authorization was challenged by the mayor of a municipality in the area before the Constitutional Court. After appeals, the case reached the Constitutional Court, the highest court of constitutional justice. There, the analysis focused on constitutional aspects, determining that the environmental authority failed to consider the constitutional obligation to prevent species extinction through the adoption of restrictive and precautionary measures. Therefore, it upheld the lower court's decision to revoke the environmental permits for violating the rights of nature.

Sources

Constitution of the Republic of Ecuador.

Constitutional Court of Ecuador. Judgment No. 1149-19-JP/21.

Peck, M. R. (2024). *The conflict between Rights of Nature and mining in Ecuador: Implications of the Los Cedros Cloud Forest case for biodiversity conservation.*

<https://besjournals.onlinelibrary.wiley.com/doi/full/10.1002/pan3.10615>

Can individuals or communities file collective environmental actions or constitutional remedies in mining-related cases?

1.0

Criterion 65

Justification

In Ecuador, standing to sue is open in all matters: administrative, civil, criminal, and constitutional. The constitutional basis is found in Article 397, paragraph 1 of the Constitution, which allows any person to bring legal actions in this area. Accordingly, Article 91 of the Mining Law grants the right to file a public action for environmental damage resulting from mining activity. In constitutional matters, Article 86, paragraph 1 of the Constitution legitimizes any person, group of persons, community, people, or nationality to bring constitutional actions. In civil matters, Article 38 of the General Organic Code of Procedures provides that any person or the Ombudsman may represent nature in court. And, in criminal matters, Article 421 of the Comprehensive Organic Criminal Code provides that a complaint may be filed by any person who becomes aware of the commission of a crime subject to public prosecution, including the crime of illegal mining of mineral resources.

Sources

Constitution.

Comprehensive Organic Criminal Code.

Organic Code of Procedures.

Mining Law.

Is judicial action allowed in defense of diffuse environmental interests (such as ecosystem protection or public health) without the need to demonstrate individual harm?

1.0

Criterion 66

Justification

Article 397, paragraph 1 of the Constitution expressly permits the exercise of legal actions "without prejudice to direct interest." Furthermore, Article 72 of the same Constitution recognizes and guarantees the right of nature to be restored.

Sources

• *Constitution of the Republic of Ecuador. Articles 14, 73, 389, 396.*

https://www.oas.org/juridico/pdfs/mesicic4_ecu_const.pdf

• *Becerra Guamán, P. R., & Maldonado Ruiz, L. M. (2025). Legal and environmental impact of illegal mining in the Ecuadorian Amazon: normative and jurisprudential analysis.*

<https://magazineasce.com/index.php/1/article/download/369/246>

Is there an interstate coordination mechanism for the investigation and prosecution of transboundary environmental crimes related to mining?

0.0

Criterion 67

Justification

There is no specific or specialized mechanism for this type of crime. However, such state coordination is possible through various mechanisms of international criminal cooperation, including mutual legal assistance, covert operations, controlled deliveries, and the sharing of evidence.

Sources

Attorney General's Office. International criminal cooperation in Ecuadorian criminal law.

Does the government enforce compliance of regulations related to illegal ASM, including through sanctions for environmental damages and non-compliance?

1.0

Criterion 68

Justification

For years, the state's response to illicit activities was sporadic (for example, the intervention in Yutzupino). However, since 2023, the response has improved markedly, as seen in coordinated operations between the Police and the Armed Forces to dismantle notorious illegal mining sites (for example, Buenos Aires). This, in turn, is reflected in the Resolution of the State Public Security Council, which, in 2023, characterized illegal mining as a threat to state security; and, in 2024, the President included it within the framework of organized crime, through Decree 435. In 2025, a law was passed that further characterized illegal mining as a crime related to the crime of belonging to an armed group in the internal armed conflict, which has been in effect in the country since 2024 according to Decree 111; however, this law was declared unconstitutional by the Constitutional Court.

Sources

State Security Council. Resolution of January 24, 2023.

Executive Decree No. 111 of January 9, 2024.

Executive Decree No. 435 of October 23, 2024.

Can licenses be suspended or revoked in cases of environmental law violations or social violations?

1.0

Criterion 69

Justification

Both suspension and revocation result from the application of control mechanisms by the authority that grants environmental administrative authorizations, as stipulated in Articles 187 and 188 of the COAM (Organic Code of the Environmental Authorizations). In accordance with Article 187 of the COAM and Article 39 of the RAAM (Regulations of the Environmental Authorizations of the Environmental Authorizations), suspension is a provisional measure and applies when non-conformities are identified due to non-compliance with: (i) the environmental management plan, or (ii) environmental regulations; provided that the non-conformities result in environmental damage. The suspension may be lifted after approval of a report detailing the remediation of the non-compliance.

In accordance with Article 188 of the COAM, revocation interrupts the execution of the project and applies when major non-conformities are identified due to repeated non-compliance with the management plan without corrective measures having been adopted. The project may only resume after the granting of a new environmental administrative authorization and prior compliance with the environmental management plan. RCOAM 500 and 501 list minor nonconformities and major nonconformities.

Sources

Mining Law.

Organic Environmental Code.

Regulations to the Organic Environmental Code.

Environmental Regulations for Mining Activities.

<https://www.lexis.com.ec/biblioteca/ley-mineria>

<https://www.lexis.com.ec/biblioteca/codigo-organico-ambiente>

Are there specific sanctions or criminal categories related to damage caused by mercury?
***0.5 may be given in cases where there is general sanctions on waste disposal and environmental harm, but none directly related to mercury.**

0.5

Criterion 70

Justification

Ecuador's Comprehensive Organic Criminal Code includes a chapter dedicated to environmental crimes, covering both pollution and the illegal exploitation of natural resources. Although it does not explicitly mention mercury, its provisions are broad enough to include it. For example, Articles 251 to 255 of the COIP address various forms of environmental damage. Article 254, concerning the Management of Hazardous Substances, criminalizes the development, transport, sale, use, or disposal of hazardous chemicals or waste in violation of regulations when such actions cause serious harm to natural resources or biodiversity.

Sources

Comprehensive Organic Criminal Code of Ecuador

Is there any legal obligation to adopt rehabilitation and/or compensation measures where environmental damage has been found?

1.0

Criterion 71

Justification

Article 396 of the Constitution establishes strict liability for environmental damage and the dual obligation to compensate those affected by the damage; and, furthermore, the obligation to restore nature. This latter point is in accordance with Article 72 of the same Constitution. Book VII of the Organic Environmental Code establishes the guidelines for repairing environmental damage and restoring nature.

Sources

Organic Environmental Code.
Mining Law.

Can sanctions be applied based on remote evidence (e.g., satellite images)?

1.0

Criterion 72

Justification

Yes, in administrative proceedings, since Article 199 of the Organic Administrative Code stipulates that the facts for a decision in a proceeding may be proven by any legally admissible means of evidence.

However, in criminal proceedings, this is not possible because the Public Prosecutor's Office does not have a specific mining monitoring imagery service, nor are there experts who can certify satellite monitoring reports generated by non-governmental organizations. Article 511 of the Comprehensive Organic Criminal Code establishes specific rules for expert testimony. These reports may serve as elements of conviction or evidence during the initial stage of the criminal process, although never as the sole element but rather in conjunction with other elements; however, they are not valid as evidence for the reasons stated above.

Sources

Comprehensive Organic Criminal Code.
Organic Administrative Code.

Are there clear legal sanctions for environmental crimes related to ASM?

1.0

Criterion 73

Justification

Articles 260 and 261 of the Comprehensive Organic Criminal Code define the crimes of illicit mining activities and establish the most severe penalties in the chapter on environmental crimes. These penalties include: imprisonment for 13 to 30 years; fines of up to 1,500 times the unified basic salary; confiscation of the goods used; and other non-custodial penalties.

Sources

Comprehensive Organic Criminal Code.

Are criminal networks involved in illegal gold trade targeted by enforcement agencies?

1.0

Criterion 74

Justification

The actions can be administrative or criminal in nature. However, as stipulated in Article 4 of Decree 435, these are usually coordinated among administrative, judicial, police, and military authorities. This is reflected in the most recent operations, including the bombing and destruction of the illegal mine located in the Buenos Aires area of Imbabura province.

Sources

Executive Decree No. 435 of October 23, 2024.

<https://www.primicias.ec/economia/gobierno-noboa-ataques-mineria-ilegal-puntos-criticos-azuay-morona-santiago-107786/>

Are economic sanctions applied to companies or individuals trading in illicit gold?

1.0

Criterion 75

Justification

The unauthorized commercialization of mineral resources is classified as a crime under Article 260 of the Comprehensive Organic Criminal Code, with fines ranging from 100 to 1,500 times the unified basic salary. These penalties apply to both individuals and legal entities, which are also criminally liable in Ecuador.

Sources

Comprehensive Organic Criminal Code.

Can environmental and mining authorities impose sanctions independently of a criminal process (administrative sanctions)?

1.0

Criterion 76

Justification

The power to impose sanctions in Ecuador has a dual administrative and criminal dimension. In accordance with Article 76, paragraph 7, subparagraph i of the Constitution, this power is independent because the matters addressed are distinct. Article 8, subparagraph m of the Mining Law grants this power to the Mining Regulation and Control Agency (ARCOM), which has the authority to impose administrative sanctions. According to Article 86 of the same

law, the national environmental authority can also impose administrative sanctions for environmental damage resulting from mining activities.

Sources

Constitution of the Republic of Ecuador
Mining Law.

Amazon Mining Policy Scoreboard

Led by Amazon Conservation Association · amazonconservation.org

In collaboration with: Pulitzer Center · Rainforest Investigations Network · Earth Genome